

**CHAPTER ccxli.**

An Act for incorporating and conferring powers on the A.D. 1903.
Scottish Central Electric Power Company.

[14th August 1903.]

WHEREAS the providing of central electrical generating stations and the erection of such buildings and works as are hereinafter mentioned for the production transformation storage and distribution of electricity within the area of supply hereinafter defined would be of public and local advantage :

And whereas the persons in this Act named with others are willing at their own expense to construct the electrical generating stations and buildings and it is expedient that they be incorporated into a company (in this Act called “the Company”) and that powers should be conferred on them for the purpose and for acquiring certain lands for such generating stations buildings and works and generally for carrying out the objects and provisions of this Act :

And whereas a plan showing the lands which may be taken compulsorily under the powers of this Act with a book of reference to the plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the principal sheriff clerks of the counties of Linlithgow Clackmannan Stirling and Dumbarton and are hereinafter respectively referred to as the deposited plan and book of reference :

And whereas it is expedient that the Company be empowered to make charges for the supply of electricity and to raise capital and borrow money for the purposes of this Act :

And whereas it is expedient that powers should be conferred upon the Company to make contracts and agreements with local

A.D. 1903. — authorities and others for the supply of electrical energy in bulk or otherwise and with railway companies for the acquisition of easements for the placing of mains cables tubes pipes posts and wires along or adjacent to their lines of railway as hereinafter provided :

And whereas the aforesaid objects cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Scottish Central Electric Power Act 1903.

Application
of Electric
Lighting
Acts and
incorporated
Acts.

2. The provisions of the Electric Lighting Act 1888 and the Schedule to the Electric Lighting (Clauses) Act 1899 which are contained in the sections thereof hereinafter mentioned shall not apply to the Company or their undertaking anything in any of the said Acts to the contrary notwithstanding (that is to say) :—

Sections 2 and 3 of the Act of 1888 and sections 2 3 5 7 8 9
21 to 29 30 so far as respects supply in bulk 31 to 35
64 to 68 78 and 84 of the Schedule to the Act of 1899 :

But except as aforesaid the provisions of the said Act of 1888 and the said Schedule are incorporated with and form part of this Act.

The provisions of section 14 of the Schedule to the Electric Lighting (Clauses) Act 1899 shall extend and apply to the laying down and placing of any cables or other works in through under along or across the bed and foreshore of any river.

Incorporation
of general
Acts.

3. The Lands Clauses Acts and the Companies Clauses Consolidation (Scotland) Act 1845 Part I. (Cancellation and surrender of shares) and Part III. (Debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts are subject to the provisions of this Act incorporated with and form part of this Act.

Interpretation.

4. In this Act unless the context otherwise requires—

The several words terms and expressions to which by the Acts wholly or partially incorporated herewith meanings are assigned shall have the same respective meanings unless there be something to the contrary contained therein :

“The undertaking” means the undertaking by this Act authorised :

“The Company” means the Company incorporated by this Act who shall for the purposes of this Act be the undertakers within the meaning of the principal Acts: A.D. 1903.

“Authorised undertakers” means—

(1) Any authority authorised by any general or special Act to undertake or contract for the lighting of streets bridges or public places within the area of supply as defined by this Act;

(2) Any county authority local authority company body or person authorised by Act of Parliament or Provisional Order confirmed by Parliament to supply energy within the area of supply as defined by this Act (in this Act referred to as “authorised distributors”):

The expression “county authority” means and includes the county council of any county and the district committee of any district within the area of supply as defined by this Act:

The expression “local authority” means and includes the town council of any burgh within the area of supply.

5. The domicile of the Company with reference to all judicial proceedings or actions at law shall be and be deemed to be in Edinburgh. Domicile of Company.

6. David Russell Adam Nimmo James Archibald Hood Montague Tabor Pickstone Henry Moubray Cadell Walter Stowe Bright McLaren Mark Robinson Thomas Octavius Callender and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assignees respectively shall be and are hereby united into a company for the purpose of making and maintaining central generating stations and for the other purposes of this Act and for those purposes shall be and are hereby incorporated by the name of “The Scottish Central Electric Power Company” and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act. Company incorporated.

7. Subject to the provisions of this Act the Company may acquire lease hire construct maintain use enlarge alter or discontinue the use of and may sell let or otherwise dispose of lands buildings machinery plant and apparatus for the production generation storage regulation transformation measurement and General powers of Company.

A.D. 1903. supply of electrical energy and may also sell let or otherwise
— dispose of all such lands buildings machinery appliances and other
property.

LANDS &c.

Lands for
generating
stations.

8. The Company may subject to the provisions of this Act enter upon take hold and use the lands in the counties of Linlithgow Stirling and Clackmannan described in the First Schedule to this Act shown on the deposited plan and described in the deposited book of reference or any part or parts thereof and may use those lands or any portion thereof for the erection and establishment of stations for generating electrical energy with all necessary and convenient buildings engines dynamos apparatus and conveniences connected with such stations.

Power to
deviate.

9. The Company may in constructing the works by this Act authorised deviate laterally from the lines thereof to the extent of the limits of deviation shown thereon not exceeding ten feet.

Correction
of errors &c.
in deposited
plan and
book of re-
ference.

10. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff of the county in which such lands are situate for the correction thereof and if it appear to the sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and shall in his certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerk for the said county and a duplicate thereof shall also be deposited with the town clerk or clerk to the commissioners of any burgh or with the clerk of the parish council of any parish outside a burgh in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plan and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

Period for
compulsory
purchase of
lands.

11. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

12. Subject to the provisions of this Act the Company may manufacture acquire maintain and use and sell let on hire and otherwise dispose of electric and other mains storage and other batteries dynamos accumulators cables conductors services wires tubes pipes insulators meters reservoirs distributing cut-out and other boxes switches transformers lamps fittings motors and other apparatus for transmitting storing measuring regulating and distributing electrical energy for lighting and other purposes public and private or for converting the same into motive power heat or otherwise and may (by agreement) lay down and use pipes conduits and other channels of water supply for feeding or condensing purposes or other purposes connected with the undertaking of the Company :

A.D. 1903.
 Storage and
 distributing
 works.

Provided that where any of the local authorities of the burghs of Stirling Falkirk Alloa Borrowstounness Grangemouth Alva Kilsyth Denny and Dunipace and the Stirling Waterworks Commissioners and the Falkirk and Larbert Water Trustees respectively or any county authority are supplying water under statutory authority for trade or domestic purposes within any area within which any of the generating stations of the Company are situate and are able and willing to supply any water reasonably required by the Company at such generating stations at such price as water is being at the time supplied for trade purposes within the district the Company shall not except with the consent of such burghs and water commissioners and water trustees or county authority respectively use at such generating stations water supplied by any other local authority water commissioners or water trustees or county authority.

13. The Company may for the general purposes of their undertaking purchase and hold or take on lease (by agreement but not otherwise) in addition to the lands delineated on the deposited plan and described in the deposited book of reference any lands and hereditaments not exceeding in the whole sixty acres which the Company may from time to time require for the aforesaid purposes but the Company shall not be exonerated from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands acquired under this section.

Power to
 purchase
 lands by
 agreement.

14. The Company may acquire by agreement and exercise servitudes for the placing of mains cables posts and wires over and under lands and property belonging to any company body or person

Power to
 acquire ser-
 vitudes over
 lands and
 property.

A.D. 1903. — and may make agreements with any companies bodies and persons for the supply of electricity by or to the Company.

Power to
owners to
grant servi-
tudes &c.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for any of the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Restriction
on taking
houses of
labouring
class.

16.—(1) The Company shall not under the powers of this Act purchase or acquire in any district for the purposes of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

CAPITAL.

Capital.

17. The capital of the Company shall be six hundred thousand pounds in sixty thousand shares of ten pounds each.

18. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof.

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Shares not
to be issued
until one
fifth paid.

19. One fifth of the amount of a share shall be the greatest amount of a call and three months at least shall be the interval between successive calls and three fifths of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share.

Calls.

20. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of his tutor or curator or curator bonis or of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in
case of per-
sons not sui
juris.

21. Subject to the provisions of this Act the Company with the authority of three fourths of the votes of the shareholders present in person or by proxy at a general meeting of the Company specially convened for the purpose may divide any shares in their capital into half shares of which one shall be called "preferred half share" and the other shall be called "deferred half share" but the Company shall not divide any share under the authority of this Act unless and until not less than sixty per centum upon such share has been paid up and upon every such division fifty per centum upon the entire share shall be carried to the credit of the deferred half share (being the whole amount payable thereon) and the residue to the credit of the preferred half share.

Power to
divide shares.

22. The dividend which would be payable on any divided share if the same had continued an entire share shall be applied in payment of dividends on the two half shares in manner following (that is to say) First in payment of dividend after such rate not exceeding six pounds per centum per annum as shall be determined once for all at a general meeting of the Company specially convened for the purpose on the amount for the time being paid up on the preferred half share and the remainder (if any) in payment of dividend on the deferred half share and the Company shall not pay any greater amount of dividend on the two half shares than would have from time to time been payable on the entire share if the same had not been divided.

Dividends on
half shares.

23. Each preferred half share shall be entitled out of the profits of each year to the dividend which may have been attached to it by the Company as aforesaid in priority to the deferred half

Dividend on
preferred
shares to be
paid out of

A.D. 1903.
profits of
year only.

share bearing the same number but if in any year ending the thirty-first day of December there shall not be profits available for the payment of the full amount of dividend on any preferred half share for that year no part of the deficiency shall be made good out of the profits of any subsequent year or out of any other funds of the Company.

Half shares
to be regis-
tered and
certificates
issued.

24. Forthwith after the creation of any half shares the same shall be registered by the directors and each half share shall bear the same number as the number of the entire share certificate in respect of which it was issued and the directors shall issue certificates of the half shares accordingly and shall cause an entry to be made in the register of the entire shares of the conversion thereof but the directors shall not be bound to issue a certificate of any half share until the certificate of the existing entire share be delivered to them to be cancelled unless it be shown to their satisfaction that such certificate is destroyed or lost and on any certificate being so delivered up the directors shall cancel it.

Terms of
issue to be
stated on
certificates.

25. The terms and conditions on which any preferred half share or deferred half share created under this Act is issued shall be stated on the certificate of each such half share.

Forfeiture of
preferred
shares.

26. The provisions of the Companies Clauses Consolidation (Scotland) Act 1845 with respect to the forfeiture of shares for non-payment of calls shall apply to all preferred half shares created under the authority of this Act and every such preferred half share shall for that purpose be considered an entire share distinct from the corresponding deferred half share and until any forfeited preferred half share shall be sold by the directors all dividends which would be payable thereon if the same had not been forfeited shall be applied in or towards payment of any expenses attending the declaration of forfeiture thereof and of the arrears of calls for the time being due thereon with interest.

Preferred
shares not to
be cancelled or
surrendered.

27. No preferred half share created under the authority of this Act shall be cancelled or be surrendered to the Company.

Half shares
to be half
shares in
capital.

28. The several half shares under this Act shall be half shares in the capital of the Company and every two half shares (whether preferred or deferred or one of each) held by the same person shall confer such right of voting at meetings of the Company and (subject to the provisions hereinbefore contained) shall confer and have all such other rights qualifications privileges liabilities and incidents as attach and are incident to an entire share.

29. When seventy-five thousand pounds of the capital of the Company shall have been subscribed under contract binding the parties thereto their heirs executors and administrators for the payment of the several sums in such portion of capital by them respectively subscribed it shall be lawful for the Company to put in force the powers of this Act in relation to the compulsory taking of lands for the purposes of the generating station or stations by this Act authorised and such sums shall be deemed to be the prescribed sum for the purposes of section 16 of the Lands Clauses Consolidation (Scotland) Act 1845 The deposit with the Board of Trade of a statutory declaration by two of the directors and the secretary of the Company that the said sum of seventy-five thousand pounds has been subscribed as aforesaid shall be sufficient evidence thereof.

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Portion of
capital to be
subscribed
before com-
pulsory
powers put
in force.

30. The Company may borrow on debenture or on mortgage of their undertaking any sum or sums not exceeding in the whole one third part of the amount of the share capital of the Company at the time actually issued and accepted but no part of any such sum or sums shall be borrowed until the shares in respect of which the borrowing power is exercised are issued and accepted as aforesaid and one half thereof is paid up and the Company shall have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that such shares have been issued and accepted and that one half thereof has been paid up and that not less than one fifth part of the amount of each separate share so issued and accepted has been paid on account thereof before or at the time of the issue or acceptance thereof and upon production to such sheriff of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

As to bor-
rowing
power of
Company.

31. The mortgagees or debenture holders of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages or debentures by the appointment of a judicial factor In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees or debenture holders by whom the application for a judicial factor is made shall not be less than ten thousand pounds in the whole.

For appoint-
ment of a ju-
dicial factor.

32. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses

Debenture
stock.

A.D. 1903. — Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this Act or any subsequent Order or Act shall subject to the provisions of any subsequent Order or Act rank *pari passu* (without respect to the dates of the securities or of the Orders or Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Application
of moneys.

33. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable.

APPOINTMENT OF DIRECTORS AND MEETINGS.

First ordi-
nary meet-
ing.

34. The first ordinary meeting of the Company shall be held within six months after the passing of this Act.

Number of
directors.

35. The number of directors shall be seven but the Company may vary the number provided that the number be not at any time less than four nor more than seven.

Qualification
of directors.

36. The qualification of a director shall be the possession in his own right of not less than one hundred shares.

Quorum.

37. The quorum of a meeting of directors shall be three.

First direc-
tors.

38. Thomas Octavius Callender Walter Stowe Bright McLaren David Russell James Archibald Hood and three other duly qualified persons to be nominated by them or the majority of them and consenting to such nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act (or nominated as aforesaid) or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act (or nominated as aforesaid) being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the

directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation (Scotland) Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act. A.D. 1903.

SUPPLY.

39. Subject to the provisions of this Act the area of supply shall be the whole of the counties of Linlithgow and Clackmannan the parishes of Logie Stirling Saint Ninians Airth Bothkennar Grangemouth Larbert Dunipace Denny Kilsyth Falkirk Slamannan Muiravonside and Polmont in the county of Stirling and the parish of Cumbernauld in the county of Dumbarton. Area of supply.

40. The powers of the Company for the supply of energy under this Act shall be subject to the following restrictions (that is to say) :— Limitation of powers.

- (1) Energy shall be supplied by the Company only—
 - (A) To authorised undertakers in bulk; and
 - (B) To persons requiring a supply for power :
- (2) The Company shall not supply energy for lighting purposes except to authorised undertakers provided that the energy supplied to any person for power may be used by such person for lighting any premises on any part of which the power is utilised :
- (3) The Company shall not supply energy (except to authorised undertakers) in any area which at the date of the passing of this Act forms part of the area of supply of any authorised distributors without the consent of those distributors which consent shall not be unreasonably withheld :
- (4) If any question arises as to whether the consent of any authorised distributors is unreasonably withheld that question shall be determined by the Board of Trade and the consent shall be deemed to be unreasonably withheld if the authorised distributors are not willing and in a position to give the requisite supply upon reasonable terms and within a reasonable time and in considering what are reasonable terms and what is a reasonable time the Board of Trade shall amongst other things have regard to the terms upon which and the time within which the Company are willing and able to give the supply :

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- (5) In the event of the local authorities of the burghs of Grangemouth Alva Denny and Dunipace and Kilsyth respectively becoming authorised distributors within three years after the commencement of this Act they shall for the purposes of this Act be respectively deemed to have been authorised distributors at the commencement of this Act.

As to appli-
cation for
Provisional
Orders.

41. Nothing contained in this Act shall prevent the Company from applying and the Company may apply for Provisional Orders under the Electric Lighting Acts 1882 and 1888.

Company to
furnish sup-
ply of energy
in bulk to
authorised
undertakers.

42. The Company shall upon being required to do so by any authorised undertakers give and continue to give to such undertakers at such point or points within the area of supply as such undertakers may reasonably require a supply of energy in bulk at a price not exceeding the prices stated in the Second Schedule to this Act and they shall furnish and lay such electric lines as may be necessary for the purpose of supplying to such undertakers at such point or points the maximum power with which such undertakers may be entitled to be supplied under this Act subject to the conditions following (that is to say):—

- (1) Authorised undertakers requiring a supply of energy as aforesaid shall—

(A) Serve a notice upon the Company specifying the point at which such supply is required to be given and the maximum power required to be supplied and the day upon which such supply is required to commence (not being an earlier day than a reasonable time after the date of the service of such notice having regard to the situation of the district and to the length of electric line required to be laid and plant required to be erected for affording such supply); and

(B) Enter into a written contract with the Company (if required by them so to do) to continue to receive and pay for the supply of energy for a period of at least seven years of such an amount that the payment to be made for the same shall not be less than twenty pounds per centum per annum on the outlay (excluding expenditure on generating plant and any electric line then laid) incurred by the Company in making provision for such supply:

- (2) The Company may charge for a supply of energy to such undertakers either by the actual amount of energy so

supplied or by the electrical quantity contained in the supply or by such other method as may be agreed between the Company and such undertakers: A.D. 1903.

- (3) The maximum power with which any such authorised undertakers shall be entitled to be supplied shall be of such amount as shall be reasonable for the purposes for which such supply is required and shall not be increased except upon service of a fresh notice in accordance with the provisions of this section.

If any difference arises under this section such difference shall be determined by arbitration in terms of the section of this Act whereof the marginal note is "Arbitration as regards supply."

43. Whenever the Company make default in supplying energy in bulk to any authorised undertakers to whom they may be and are under this Act required to supply energy in bulk in accordance with the foregoing provisions of this Act they shall be liable in respect of each default to a penalty not exceeding ten pounds for each day on which the default occurs: Penalty for failure to supply in bulk.

Provided that the penalties to be inflicted on the Company under this section shall not exceed in respect of any one default not being a wilful default on the part of the Company the sum of five hundred pounds And provided also that in no case shall any penalty be inflicted in respect of any default if the court are of opinion that the default was caused by inevitable accident or damno fatali or was of so slight and unimportant a character as not materially to affect the value of the supply.

44. The Company shall give a supply of energy to any person who requires a supply which may be given by this Act other than a supply in bulk upon that person entering into a binding agreement to take the energy upon such terms as failing agreement shall be fixed by a single arbiter appointed by the Board of Trade and in fixing such terms (including a minimum annual sum to be paid to the Company) the arbiter shall have regard to the following amongst other considerations:— Arbitration as regards supply.

- (1) The period for which the person to whom the supply is to be given is prepared to bind himself to take energy;
- (2) The amount of energy required and the hours during which the Company can be called upon to supply such energy;
- (3) The capital expenditure in connection with the supply of such energy; and

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(4) How far capital expended in connection with such supply may become unproductive to the Company upon the discontinuance of such supply.

Notice of discontinuance of supply.

45. Any authorised undertakers or persons supplied with energy by the Company under this Act who are desirous of discontinuing to receive such supply shall give to the Company twelve months' notice in writing of their intention to discontinue to receive such supply. Such notice may be given so as to expire at the end of the period for which the undertakers or persons have contracted to continue to receive and pay for such supply or at any subsequent date.

As to notices under section 16 of Schedule to Act of 1899.

46. A notice served upon the Company under section 16 of the Schedule to the Electric Lighting (Clauses) Act 1899 shall be of no effect unless it be served within the period prescribed by this section (that is to say) :—

In the case of a notice stating that the givers of the notice desire to exercise or discharge all or any part of the powers or duties of the undertakers within one month from the service by the undertakers of the notice prescribed by section 14 or section 15 of the said Schedule as the case may be; and

In the case of a notice amending or revoking any such first-mentioned notice within fourteen days from the service of such first-mentioned notice.

Agreements for supply of energy.

47. Subject to the provisions of this Act the Company on the one hand and any person on the other hand may enter into and carry into effect contracts agreements or arrangements for or with respect to the supply by the Company to such person of energy at such price and on such terms and conditions as may be agreed and the Company may supply such energy accordingly.

Maximum power.

48. The maximum power with which any such authorised undertakers or persons shall be entitled to be supplied shall be of such amount as they may demand to be supplied with not exceeding what may be reasonably anticipated as the maximum consumption.

If any difference arises between any such authorised undertakers or persons and the Company as to what may be reasonably anticipated as the consumption of such authorised undertakers or persons such difference shall be determined by a single arbiter to be appointed by the Board of Trade.

49.—(1) Subject to the provisions of this Act any electric lines laid down in any street by the Company under this Act shall be laid in such line or route and in a trench of such dimensions and in such position as may be agreed between the Company and the county authority or local authority as the case may be or as failing agreement shall be settled by the Board of Trade And the Company shall show on the plan of the works to be served on such county authority or local authority in accordance with the provisions of this Act the route proposed to be taken and the dimensions and position of the proposed trench.

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As to route.

Where the county authority or local authority object to any proposed line or route on the ground that it would traverse the principal thoroughfares or busy streets of such county or burgh and indicates an alternative route or deviation and either within or without or partly within and partly without the area of such county or burgh which in the opinion of the Board of Trade is reasonably practicable such alternative route or deviation shall be adopted Provided nevertheless that the provisions of this section shall not take away or prejudicially affect the rights of the Postmaster-General under section 14 of the Schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply in respect of such alternative route or deviation.

(2) The reasonable and proper costs charges and expenses incurred by any county authority or local authority in relation to any reference to the Board of Trade under this section shall unless the Board of Trade shall certify that the action of the county authority or local authority in the matter has been unreasonable be paid by the Company.

50.—(1) The Board of Trade may on the application of the Company or of any authorised undertakers or person to whom the Company is supplying energy under this Act or of any county or local authority within the area of supply appoint and keep appointed one or more competent and impartial person or persons to be an electric inspector or electric inspectors under this Act and the Board of Trade may prescribe the fees to be taken by any such inspector and these fees shall be accounted for and applied as may be directed by the Board of Trade.

Appointment
of electric
inspectors.

(2) The Company shall whenever reasonably required by any county authority or local authority through whose district any trunk main is laid test and furnish a record of the testing of the portion of main within their district and in case the Company

A.D. 1903. fail to comply with the provisions of this subsection any such county authority or local authority may apply to the Board of Trade to appoint an inspector for the purpose of testing such main and the foregoing provisions of this section shall apply to the appointment of such inspector and the Company shall pay the cost of such testing.

PRICES AND DIVIDENDS.

Maximum
prices.

51. The prices to be charged by the Company for energy supplied by them shall not exceed those stated in that behalf in the Second Schedule hereto.

Relation
between
price and
dividend.

52.—(1) Except as hereinafter provided the dividend payable by the Company on the capital of the Company in any year shall not exceed eight pounds in respect of every hundred pounds paid up of such capital and that rate of dividend is hereinafter referred to as “the standard rate of dividend.”

(2) If in any year the average price per unit obtained by the Company for energy supplied by them throughout their district is less than twopence and one half-penny per unit (hereinafter referred to as “the standard price”) the dividend which the Company is authorised to pay in that year may be increased in the ratio of four shillings per centum in respect of every one and a quarter per centum by which the average price charged by the Company has been below the standard price.

(3) If in any year the average price per unit obtained by the Company for energy supplied by them throughout their district is more than the standard price the dividend which the Company is authorised to pay in that year shall be reduced below the standard rate of dividend in the ratio of five shillings per centum for every one and a quarter per centum by which the average price so obtained by the Company has been above the standard price.

(4) The Company may in addition to the dividends authorised under this Act make good any deficiency in any previous dividends which have fallen below the standard rate of dividend.

(5) The Company shall not in any case be entitled to charge for energy supplied under this Act any higher price than the maximum prices stated in this Act.

Revision of
prices.

53.—(1) The Board of Trade at any time after the expiration of a period of ten years from the passing of this Act on the application of the Company or of any three or more authorised

undertakers to whom electricity is supplied by the Company in bulk under this Act or of any twenty persons to whom electricity is otherwise supplied by the Company under this Act may revise the maximum prices contained in the Second Schedule to this Act and the relation between price and dividend as fixed by this Act and also the standard price as so fixed. A.D. 1903.

(2) The Board of Trade may if they think fit on the like application make a similar revision at the expiration of a period of ten years from the date at which the last such revision has taken place.

(3) On any such revision being so made the Board of Trade may modify the provisions of this Act both as to price and the relations between price and dividend so far as may be necessary to carry out their decisions on the revision.

PROTECTIVE PROVISIONS.

54. For the protection of the county council of any county or the district committee of any district within the area of supply (in this section called "the county authority") and of the roads streets and bridges sewers pipes waterworks channels conduits and other property vested in or under the jurisdiction of the county authority the following provisions shall notwithstanding anything contained in this Act or in the Acts incorporated therewith have effect unless otherwise agreed on between the county authority and the Company :— For protection of county authorities.

(1) Nothing in this Act contained or incorporated therewith shall take away or abridge any power vested or to be vested in the county authority to construct build lay repair maintain open or break up alter enlarge improve divert relay or reconstruct any road street bridge or any sewer drain pipe channel conduit or water or other works or any other powers of the county authority :

(2) Before commencing any work other than that of repairing the surface of any road street or bridge (of which repairs no notice shall be required) whereby any pipe wire cable electric line box or other apparatus of the Company may be interfered with the county authority shall (except in cases of emergency in which cases notice shall be given thereafter as soon as may be) give the Company notice of their intention to commence such work specifying the time at which the commencement will be made such notice to be

A.D. 1903.
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given fourteen days at least before the commencement of the work. Provided that in case of the construction of a new or the reconstruction rebuilding or widening of an existing road street or bridge one month's notice shall be given:

(3) In the event of the county authority executing any work as aforesaid involving interference with any pipe wire cable electric line box or other apparatus of the Company the Company shall in addition to giving effect to any other provisions contained in this Act for the protection of roads streets and bridges and works therein within twenty-eight days from the despatch of a notice by the county authority cut off the electric current from and at their own cost alter relay or where necessary remove temporarily or permanently as they may be required such pipe wire cable electric line box apparatus or other property to suit the new or changed conditions. And in the event of the Company failing within fourteen days to proceed to comply with the requirements of such notice or failing to carry out the same with all proper despatch the county authority shall be entitled to carry out the work themselves in such manner as they shall consider expedient and to recover the cost thereof from the Company but in either case the county authority shall at the Company's expense afford the Company reasonable temporary facilities for continuing the use of their mains and other property during the execution of any such works as aforesaid and all reasonable facilities for relaying or replacing the same or others substituted therefor:

(4) When any road street or bridge in which the pipes wires cables electric lines boxes or other apparatus or property of the Company shall be laid is to be opened up by the county authority or by any contractor or surveyor or superintendent or other person acting under their authority the Company upon receiving three clear days notice thereof at their head office or in cases of emergency such shorter notice as may be practicable shall at their own expense send to the place specified in the said notice a competent workman or superintendent or other qualified person to point out the position and level of the Company's pipes wires cables electric lines boxes or other works and give such information as may be desired by the county autho-

rity to enable the work of the county authority or persons aforesaid to be carried out expeditiously and in safety and all such operations shall be executed with all reasonable expedition and so as to cause as little damage or inconvenience to the Company as possible:

A.D. 1903.
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- (5) All additional expenditure on capital works as defined by the Local Government (Scotland) Act 1889 at any time after the commencement of this Act reasonably incurred by the county authority in consequence of the construction or laying down or by reason of the existence of any pipes wires cables electric lines boxes or other apparatus or property of the Company in any road street or bridge which but for the passing of this Act and the powers thereby conferred upon the Company would not otherwise have arisen shall be borne and paid by the Company:
- (6) The county authority shall not be liable for any damage which the Company or those employed by them may sustain through the acts of such authority in constructing reconstructing improving enlarging repairing or maintaining any road street or bridge sewer drain pipe channel conduit or water or other works or through the use of steam rollers or scarifiers or the reasonable exercise of any rights functions powers or privileges vested or to be vested in such authority or through the flooding of the mains or property of the Company but the provisions of this subsection shall not apply in any case where such damage results from the want of reasonable care on the part of the county authority:
- (7) Before the Company shall interfere with any of the roads streets or bridges sewers pipes waterworks channels and conduits or other property which are or may be under the jurisdiction of or vested in the county authority the Company shall apply in writing to the county authority for their consent to the proposed works and shall submit along with such application such plans as are prescribed by section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 or any other provisions in the general Acts incorporated herewith showing the manner in which such proposed works are to be executed and no such works shall be commenced by the Company without the consent of the county authority but such consent shall not be unreasonably withheld or delayed The determination of the county authority on any application by the Company for their consent shall

A.D. 1903.
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be intimated to the Company within one month from the date of receipt of such application and in the event of no intimation having been despatched before the expiry of the said month the county authority shall be deemed to have consented and in the event of any refusal the reasonableness or unreasonableness of such refusal shall be determined by arbitration in manner provided by this section. The county authority shall be entitled to require as a condition of their giving such consent that the Company shall comply with such reasonable regulations which the county authority are hereby authorised to make in regard to the position and level in which the Company's pipes wires cables or electric lines shall be laid the convenience of the traffic and the protection of any works or property of the county authority the position and level of the street or switch boxes and other apparatus of the Company the protection of such street or switch boxes and the prevention of accumulation of gas therein and as to the dates and hours for opening and examining the same and the method of carrying out the proposed works and the method of restoring and maintaining such roads and streets for the period after mentioned. All works of the Company so far as laid on or under any road street or public way shall be constructed of such strength as shall be fitted to support the weight of the heaviest traffic without injury and the Company shall not be entitled to discharge or emit from any part of their works any water steam or other matter or thing so as to cause danger or avoidable annoyance to traffic. No overhead wires along across or by the side of any of the roads streets or bridges shall be permitted without the consent of the county authority to be given or withheld at their absolute discretion and where such consent is given the county authority may attach thereto such conditions as may be prescribed in any regulations to be made by them or such other or further conditions as they may consider expedient in the special circumstances of any case. The provisions of this subsection shall not apply to repairs renewals or amendments of works of the Company of which the character dimensions and position remain unaltered :

- (8) Before the Company shall commence any work for which the consent of the county authority has been obtained or any repair renewal or amendment such that consent is not

required the Company shall (except in cases of emergency in which cases notice shall be given thereafter as soon as may be) give the county authority notice of their intention to commence such work specifying the time at which the commencement will be made which notice shall be given fourteen days at least before the commencement of the work and the Company shall execute the same under the superintendence of a qualified person appointed by and responsible to the county authority who shall have power to prescribe his duties and whose remuneration shall so far as the same may be incurred in respect of construction be repaid to them by the Company and the Company shall always complete such work with all reasonable expedition and cause as little damage or inconvenience as circumstances admit. If any diversion of pipes of the county authority is at any time rendered necessary by reason of the Company's operations new pipes with all proper valves scour drains and others shall at the expense of the Company be provided laid fitted and jointed at the sight and to the satisfaction of the county authority before the existing pipes and others are interfered with:

A.D. 1903.
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- (9) The Company in opening or breaking up the surface of roads or streets shall not without the consent of the county authority have more than two hundred lineal yards open or broken up at one time in any road or street less than one quarter of a mile in length and in roads or streets of greater length shall not at one time have open or broken up any continuous portion exceeding two hundred lineal yards in length with intervals of not less than two hundred and fifty lineal yards of clear space between any portions opened or broken up and the Company shall open break up or interfere with the surface of the roads or streets and obstruct the traffic thereon as little as may be and shall complete their operations and restore the surface to the satisfaction of the county authority with all reasonable despatch and maintain the same or the portion thereof comprised in the certificate hereinafter mentioned for twelve months from the date of the certificate of the county authority or their surveyor certifying such road or street to have been satisfactorily restored. The Company shall efficiently fence off light and watch all portions of roads and streets affected by such operations until the surface has been restored as aforesaid:

A.D. 1903.

- (10) The Company shall make full compensation to the county authority for all loss or damage which may occur to the roads streets bridges sewers drains mains pipes apparatus or other property of the county authority owing to or arising from the exercise or user of any powers by this Act conferred upon the Company including damage due to or arising from electricity in or escaping from the mains or other works of the Company and shall indemnify the county authority from all liability in respect of loss or damage due to or arising from the exercise or user by the Company of the powers by this Act conferred upon them :
- (11) The Company shall free of charge supply to the county council of each county and to the district committee of each district respectively within the area of supply one copy of the map and section to be made as mentioned in section 60 of the schedule to the Electric Lighting (Clauses) Act 1899 so far as the same relates to the county or district under such authority's jurisdiction and shall once in every year cause the said copy to be duly corrected to date :
- (12) In the event of the abandonment by the Company of any portion of the works by this Act authorised subsequent to the construction or partial construction thereof the Company shall if required by notice in writing from the county authority forthwith remove the pipes wires cables electric lines boxes and other apparatus and property so abandoned then being in under over upon along or across the roads streets or bridges of the county authority and reinstate the roads streets and bridges and any pipes sewers or works therein affected by the operations of the Company to the reasonable satisfaction of the county authority and if the Company shall for three months neglect or delay so to do the county authority may themselves remove the works of the Company and reinstate such roads streets bridges and any pipes sewers or works therein and recover the cost of so doing from the Company and the county authority may sell the works removed and apply the proceeds in reimbursement of their costs and outlays which shall be a first and preferable charge thereon :
- (13) If any difference shall arise under this section between the Company and the county authority the matter in dispute shall be settled by an arbiter to be mutually appointed or failing such appointment by an engineer or other person

to be appointed by the Board of Trade on the application of either party and the expenses of the arbitration or reference (including the expenses of the parties) shall be borne and paid as the arbiter may direct : A.D. 1903.

- (14) If the Company make default in complying with any of the requirements or restrictions of this section they shall in addition to any other compensation which they may be liable to make be liable for each default to a penalty not exceeding ten pounds and in the case of continuing default to a daily penalty not exceeding forty shillings Provided that the Company shall not be subject to any such penalty as aforesaid if the court are of opinion that the case was one of emergency and that the Company complied with the requirements of this section so far as was reasonable under the circumstances. |

55. Notwithstanding the provisions herein-before contained the Company shall give a supply of energy in bulk to any authorised undertakers who may require to take a portion only of the energy required by such authorised undertakers for a part of or the whole area comprised in their undertaking upon such authorised undertakers entering into a binding agreement to take such energy upon such terms as failing agreement may be fixed by arbitration and in fixing such terms (including a minimum annual sum to be paid to the Company) the arbiter shall have regard to the following amongst other considerations :—

Company to
afford partial
supply in
certain
events.

- (1) The period for which the authorised undertakers are prepared to bind themselves to take energy ;
- (2) The amount of energy required and the hours during which the Company can be called upon to supply such energy ;
- (3) The capital expenditure in connection with the supply of such energy ;
- (4) How far capital expended in connection with such supply may become unproductive to the Company upon the discontinuance of such supply.

The provisions of the section of this Act of which the marginal note is "Maximum prices" shall not apply to any supply given under this section.

56. Notwithstanding anything contained in or any powers conferred by this Act the Company shall not exercise any of the powers of this Act within the burghs of Stirling Falkirk

For pro-
tection of
burghs of
Stirling Fal-

A.D. 1903.

kirk Borrow-
stounness
Alloa &c.

Borrowstounness and Alloa respectively nor supply energy which might be used therein except with the consent of the local authorities of those burghs respectively under their respective common seals. Provided that in the event of any extension of the boundaries of the said burghs or any of them such extension shall for the purposes of this section be deemed to be part of such burgh as so extended. Provided also that for the purposes of this section any tramway between Bridge of Allan Stirling and Bannockburn shall be deemed to be part of the burgh of Stirling. Provided further that the Company may subject to the provisions in this section contained lay electric mains through the said burghs or any of them for the purpose of supplying any places within the area of supply beyond such burghs respectively but that only by such a route as the town council of the burgh may in their absolute discretion prescribe and fix and subject to the provisions following (that is to say):—

(A) The provost magistrates and councillors of any such burghs (herein-after referred to as “the town council”) may (1) fix the time or times for commencing carrying out and completing the work within the burgh (2) fix the position place and situation and levels of any such mains and require the Company to submit plans and sections of the works and of any renewals or repairs of the same:

(B) If the powers conferred by this section on the Company are exercised as herein provided the following subsections of the section of this Act the marginal note whereof is “For protection of county authorities” namely subsections (1) (2) (subject to four days being read in lieu of fourteen days contained in that subsection) (3) (4) (subject to twenty-four hours being read in lieu of three clear days contained in that subsection) (5) (except the words “as defined by the Local Government (Scotland) Act 1889”) (6) (7) (except the words “but such consent shall not be unreasonably withheld or delayed” and except the further words “and in the event of any refusal the reasonableness or unreasonableness of such refusal shall be determined by arbitration in manner provided in this section”) (8) (9) (subject to sixty lineal yards being read in lieu of two hundred lineal yards twice occurring in that subsection) (10) (11) (12) and (14) shall subject to the provisions of subsection (A) of this section extend and apply for the protection of the town councils of the said respective burghs and the Stirling Waterworks

Commissioners and the Falkirk and Larbert Water Trustees' A.D. 1903.
within their respective jurisdictions and the roads streets
bridges sewers drains pipes water and gas mains and pipes
electric lines and other works presently or which may here-
after be vested in or under the jurisdiction of or belonging
to the town council or the said waterworks commissioners
and water trustees respectively and for the purpose of this
section the words "county authority" occurring therein so
far as the said section is incorporated herewith shall for the
purpose of this section mean the town council of any such
burgh and the Stirling Waterworks Commissioners and the
Falkirk and Larbert Water Trustees as the case may be who
for the time being have any works of any kind within any
road or street in which the mains of the Company are laid
under the provisions of this section.

57. Notwithstanding anything in this Act contained the fol-
lowing provisions for the protection of the Forth Navigation
Commissioners (in this section called "the Forth Commissioners")
shall (unless otherwise agreed between the Company and the Forth
Commissioners) apply and have effect (that is to say) :—

For pro-
tection of
Forth Navi-
gation Com-
missioners.

- (1) Any electric line which may be laid under the powers of
this Act across the River Forth within the jurisdiction of
the Forth Commissioners shall be laid on a line and direc-
tion approved of by the Forth Commissioners at a depth of
at least twenty-seven feet below the existing level of low
water of spring tides in the bed of the navigable channel of
the River Forth and shall be so laid by and at the expense
of the Company at the sight and to the reasonable satis-
faction of the engineer of the Forth Commissioners and
according to plans and sections to be previously submitted
to and approved by him in writing. Provided that if such
engineer shall not have expressed his approval or disap-
proval of such plans and sections within one month after
the same shall have been submitted to him he shall be
deemed to have approved thereof. Provided also that either
before or after the electric line has been so laid if and so
often as the Forth Commissioners shall resolve to deepen
the River Forth the Company shall within three months
after such resolution has been intimated to them in writing
remove the electric line from its position at the time and
lay a temporary cable across the river at such other place as

A.D. 1903.

may be approved of by the Forth Commissioners and after the intended deepening has been carried out shall lay or relay the electric line at a depth of at least three feet below the bed of the deepened navigable channel and that always in the manner provided in this section :

- (2) The electric line shall be laid altered replaced repaired and maintained in such manner that the free and uninterrupted navigation of the River Forth shall not in any way be impeded or interfered with and such maintenance and repair shall be effected at the sight and to the reasonable satisfaction of the engineer of the Forth Commissioners and in all things at the expense of the Company :
- (3) The Forth Commissioners shall subject to the foregoing provisions give the Company all reasonable facilities for laying repairing maintaining and relaying the electric line including laying a temporary electric line during any deepening operations of the Forth Commissioners :
- (4) If in consequence of the use laying altering replacing repairing or maintaining of the electric line or of the failure of the electric line or of the maintenance thereof any damage be caused to the property of the Forth Commissioners or to the property or persons of those using the navigation the Company shall be liable and make reparation therefor :
- (5) Neither the Forth Commissioners nor any persons or vessels using the navigation or casting anchors from vessels in the river shall be liable for any injury done to the electric line or incur or be under any obligation or responsibility whatever in connection with the electric line or in respect of the laying maintaining or using the same whether the Forth Commissioners shall have approved of the Company's operations or not their privileges and immunities as to such acts remaining unaffected to the same extent as if no such electric line had been laid across the river :
- (6) Nothing herein contained shall diminish to any extent the rights and powers of the Forth Commissioners over or in the navigation and especially in regard to widening dredging and deepening and these rights and powers may at all times be as freely and fully exercised as if the electric line were not in existence :
- (7) If any difference shall at any time arise between the Company and the Forth Commissioners or their engineer with respect to any matter referred to in this section such

difference shall be determined by an arbiter to be agreed on or failing agreement to be appointed by the sheriff on the application of either the Company or the Forth Commissioners.

A.D. 1903.

58. The provisions of the section of this Act whereof the marginal note is "For protection of county authorities" shall (subject to the provisions of the section of this Act the marginal note of which is "For protection of burghs of Stirling Falkirk Borrowstounness Alloa &c.") extend and apply mutatis mutandis for the protection of the provost magistrates and councillors of (1) the royal burgh of Stirling (2) the burgh of Falkirk (3) the burgh of Alloa (4) the burgh of Borrowstounness (5) the burgh of Grangemouth (6) the burgh of Alva (7) the burgh of Kilsyth and (8) the burgh of Denny and Dunipace respectively and also for the protection of the Stirling Waterworks Commissioners and the Falkirk and Larbert Water Trustees (who are all in and for the purposes of this section referred to as "the burgh authorities") and of the roads streets bridges sewers drains waterworks gasworks channels gas and water mains pipes conduits electric lines cables and mains and other property presently situate or which may be at any time hereafter laid within the area of supply vested in or that are or may be under the jurisdiction of or belong to the burgh authorities respectively in addition to all other provisions contained in this Act for the protection of the burgh authorities and subject to the variations and exceptions following (unless otherwise agreed between the burgh authorities respectively and the Company) (that is to say):—

For protection of works of burgh local authorities &c. in area of supply.

In subsection (2) fourteen days shall be read as six days :

In subsection (4) three clear days shall be read as twenty-four hours :

In subsection (5) the words "as defined by the Local Government (Scotland) Act 1889" shall not apply to this section.

59. If the local authorities of the burghs of Grangemouth Alva Kilsyth and Denny and Dunipace shall at any time after the passing of this Act apply for an Act or Provisional Order to authorise them to generate supply or use electrical energy the Company shall not oppose such application except so far as may be necessary in order to secure the insertion in such Act or Order of clauses or amendments to protect their electric lines and works and with respect to any provisions which may be contained in any

Company not to oppose application by local authorities for Provisional Order.

A.D. 1903. — such Act or Order as to the taking over of any supply then given by the Company. Provided that nothing in this section shall prejudice the right of the Company to oppose any such application if the Company shall have entered into a binding agreement with such authority to afford to the whole area proposed to be dealt with by such authority a supply of energy for the same purposes and to the same extent as is proposed by such authority and if necessary to apply for powers in that behalf.

Company not
to oppose
extension
of burgh
boundaries.

For pro-
tection of
burghs.

60. The existence of the Company's works in any district which may be proposed to be annexed to any burgh shall not form a ground for opposing any such annexation.

61. As regards any of the burghs of Grangemouth Alva Kilsyth and Denny and Dunipace of which the local authority shall become authorised distributors the following provisions shall have effect unless otherwise agreed between the local authority and the Company (that is to say):—

- (1) The Company shall grant to the local authority for the supply of electricity terms and conditions as favourable as those granted by the Company to any other authority company or person whose circumstances are similar :
- (2) Notwithstanding any of the provisions contained in this Act if the local authority shall agree with the Company for a supply of electricity in bulk sufficient for all the reasonable requirements of the district of the local authority and shall provide for such requirements on reasonable terms and within a reasonable time the Company shall not be entitled to supply electricity either directly or indirectly to any consumer in such district. If any difference arises under this subsection the same shall be settled by an arbiter to be appointed by the Board of Trade :
- (3) In case the local authority be willing to supply electricity to any person demanding the same but be prevented from giving such supply by reason of want of power of access to the premises of such person the Company shall not be entitled to supply such person unless the local authority fail within a time which in the opinion of the Board of Trade is reasonable for the purpose to procure the necessary powers to obtain access to such premises.

For pro-
tection of
North Bri-
tish Railway
Company.

62. For the protection of the North British Railway Company (in this section called "the railway company") the following

provisions shall unless otherwise agreed in writing between the Company and the railway company have effect (that is to say):— A.D. 1903.

- (1) Nothing contained in this Act shall entitle the Company to take or acquire by compulsion any portion belonging to the railway company of the Westfield site or the Alva site described in the First Schedule to this Act:
- (2) The Company shall not in the construction maintenance or use of any of their works injure or interfere with the viaduct known as the Avon Viaduct carrying the Blackston branch railway of the railway company over the River Avon and land to the east thereof nor the said Blackston branch railway nor the Alva branch railway of the railway company:
- (3) In the event of the Company acquiring the Alva site described in the First Schedule to this Act or any part thereof and erecting thereon a station for generating electrical energy the Company shall not be entitled to use and shall not use the present level crossing of the private road included in the said site over the Alva branch railway of the railway company but shall be bound to carry the said private road over the said branch railway by means of an overline bridge for a double line of railway which bridge and the approaches thereto shall be constructed completed and maintained by and at the expense of the Company to the satisfaction of the engineer of the railway company for the time being and in accordance with plans and designs to be approved by the said engineer before the work of construction of the said bridge is commenced by the Company:
- (4) If the Company at any time provide electric power conductors within ten yards of any electric wires on railways owned leased worked or maintained by the railway company these electric wires shall be fully protected and the provisions of the section of this Act whereof the marginal note is "As to route" for the protection of the Postmaster-General shall be applicable and extend to the wires and telegraphs of the railway company:
- (5) If any difference shall arise between the Company and the railway company with regard to the meaning of this section or any matter arising out of the same such difference shall be settled by an arbiter to be agreed on by the parties

A.D. 1903.

or failing agreement to be appointed on the application of either party by the Board of Trade.

For protection of
British Electric Plant
Company
Limited.

63. The following provisions shall apply and have effect for the protection of the British Electric Plant Company Limited (in this section called "the electric plant company") :—

- (1) In the event of the electric plant company becoming the undertakers under an Electric Lighting Order to be granted by the Board of Trade in pursuance of the Electric Lighting Acts within three years after the passing of this Act for such area within the county of Clackmannan (excluding the burgh of Alva) as may be described in such Order the Company shall not supply electricity directly or indirectly in the said area without the consent in writing of the electric plant company :

Provided that nothing in this section contained shall prejudice or affect the terms and conditions of an agreement entered into between or on behalf of the electric plant company and the Commissioners of the burgh of Alloa dated the fifth and the twenty-second days of May one thousand nine hundred and a supplementary agreement dated the twenty-sixth day of June the third the tenth and the twelfth days of July one thousand nine hundred which agreements shall remain and be of full force and effect according to the true intent and meaning thereof :

Provided always that the consent of the electric plant company under this section to the supply of electricity by the Company within the said area shall not be unreasonably withheld. If any question arises whether that consent is unreasonably withheld that question shall be determined by the Board of Trade. The consent shall be deemed to be unreasonably withheld if the electric plant company are not willing and in a position to give the requisite supply upon reasonable terms and within a reasonable time and in considering what are reasonable terms and what is a reasonable time the Board of Trade shall amongst other things have regard to the terms upon which and the time within which the Company are willing and in a position to give the supply :

- (2) The Company shall not directly or indirectly oppose any application to the Board of Trade within three years after the passing of this Act for an Electric Lighting Order as

aforesaid except so far as may be necessary to secure the insertion in such Order of clauses and amendments for the protection of the Company's electric lines and works (if any). A.D. 1903.

64. For the protection of the Falkirk and District Tramways Company (in this section called "the tramways company") the following provisions shall unless otherwise agreed upon have effect and be binding on the Company (that is to say):— For protection of
Falkirk and
District
Tramways
Company.

- (A) The Company in laying the lines and constructing the works hereby authorised shall as regards the works of the tramways company be subject to the provisions of sections 13 and 15 of the Electric Lighting Act 1882 and sections 12 15 16 and 17 of the Schedule to the Electric Lighting (Clauses) Act 1899 :
- (B) The Company shall make full compensation to the tramways company for all loss or damage which may occur to the tramways electric lines apparatus or other property of the tramways company owing to or arising from the exercise or use of any powers by this Act conferred upon the Company including damage due to or arising from electricity in or escaping from the mains and electric lines of the Company :
- (c) The Company shall so lay or place their electric lines as not to interfere with or add to the expense of constructing the tramways described in the Falkirk and District Tramways Order Confirmation Act 1901 or any extension thereof hereafter to be authorised and all additional expenditure in construction at any time after the commencement of this Act reasonably incurred by the tramways company in consequence of the construction or laying down or by reason of the existence of any pipes wires cables electric lines boxes or other apparatus or property of the Company in any road street or bridge and which but for the passing of this Act and the powers thereby conferred upon the Company would not otherwise have arisen shall be borne and paid by the Company :
- (d) Nothing herein contained shall prejudice any right conferred on the tramways company by the Falkirk and District Tramways Order 1901 to obtain from any local authority company or person a supply of electrical energy or to

A.D. 1903.

supply electrical energy to any local authority company or person :

- (E) The existence of the Company's works in any area in the county of Stirling shall not form a ground for opposing any extension of the powers already conferred upon the tramways company by the aforesaid Act and the Company shall not oppose the tramways company obtaining powers to extend their tramways.

For protection of
Caledonian
Railway
Company.

65. For the protection of the Caledonian Railway Company (hereinafter referred to as "the railway company") the following provisions shall unless otherwise agreed between the Company and the railway company apply and have effect :—

- (1) No main or other work of the Company shall be carried over under or across any railway or property of the railway company except in the roadway of a public highway Provided that for the purpose of carrying any main across the Forth and Clyde Canal of the railway company the Company may lay and maintain mains under and in but so as to cross below the bed of the canal at any place within the area of supply but the Company shall not otherwise interfere with the bed soil banks or shores of that canal or the navigation thereof or affect the rights powers or privileges of the railway company in respect thereto :
- (2) All works connected with any such main so far as affecting any railway canal bridge or other work of the railway company shall be executed and thereafter maintained under the superintendence and to the reasonable satisfaction of the engineer of the railway company and according to detailed working plans and specifications to be previously submitted to such engineer and approved by him in writing Provided that if such engineer shall not have expressed his approval or disapproval of such plans and specifications within twenty-eight days after the same shall have been submitted to him he shall be deemed to have approved thereof :
- (3) All such works and any alteration which it may at any time be necessary to make in such works may be executed either by the Company or by the railway company at the option of the engineer of the railway company and in the event of the same being executed by the railway company the Company shall pay to the railway company the expense incurred by them in connection therewith :

- (4) In the event of the Company and the railway company differing in opinion in regard to any works affecting any railway canal bridge or other work of the railway company or as to the mode of carrying out such works or otherwise in relation thereto such difference shall on the application of the Company or of the railway company be determined by an engineer to be appointed by the Board of Trade on the application of either party : A.D. 1903.
- (5) In the event of the telegraphic telephonic or electrical signal communications of the railway company being at any time injuriously affected by induction or otherwise by reason of the electric lines of the Company the Company shall be at the expense of such remedial works as may be necessary for the protection of the railway company and in the event of any difference between the Company and the railway company regarding the remedial works to be adopted such difference shall be determined by an arbiter to be appointed by the Board of Trade on the application of either party :
- (6) The Company shall not take or acquire compulsorily any lands or property of the railway company or any servitude or wayleave right in over or under such land or property.

SUPPLEMENTAL.

66. Subject to the provisions of this Act the Company and the proprietors or trustees of any navigation or any other company or person may enter into and carry into effect contracts agreements and arrangements for and with respect to the supply of water to the Company for condensing and other purposes of their undertaking by any such proprietors trustees company or person. Agreements with regard to supply of water.

67. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and re-flows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making Works below high-water mark not to be commenced without consent of Board of Trade.

A.D. 1903. — any such alteration or extension the like consents or approvals If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

As to works
across tidal
waters.

68. Notwithstanding anything contained in this Act any cables pipes or wires to be laid or placed by the Company under or across any tidal water shall be laid or placed at such depth under or such height over the tidal water as the Board of Trade may require.

Saving rights
of Crown in
foreshore.

69. Nothing contained in this Act shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any right in respect thereof belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything in this Act contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exercisable by the King's Majesty.

Transfer of
undertakings
of local au-
thorities and
others to
Company.

70.—(1) The Company may by agreement (but not otherwise) acquire from any local authority or other undertakers to whom a Provisional Order under the Electric Lighting Acts 1882 and 1888 shall have been granted relating to a district or place within the Company's area of supply the undertaking authorised by such Provisional Order and any such undertakers to whom a Provisional Order has prior to the date of the passing of this Act been granted (whether such Order has been confirmed before or shall be confirmed after such date) may with the approval of the Board of Trade transfer their undertaking to the Company on such terms and conditions as may be agreed upon and in the event of the Company so acquiring such undertaking they shall be deemed to be the undertakers for all the purposes of the Provisional Order so acquired by them and the provisions of such

Provisional Order shall apply to the supply of electricity by the Company within the area of supply as defined by such Order
Provided that—

A.D. 1903.

- (A) In the case of any Provisional Order granted prior to the year one thousand nine hundred to any local authority the provisions of the Electric Lighting (Clauses) Act 1899 shall from and after such transfer be deemed to have been incorporated with such Provisional Order and shall control and supersede such of the provisions of that Order as are at variance or inconsistent therewith; and
- (B) None of the provisions of any Provisional Order so acquired by the Company or of the Electric Lighting Acts 1882 and 1888 shall extend to authorise the purchase by any local authority of any generating station or other works of the Company used or required for the purposes of supplying any other portions of the Company's area of supply.

(2) Any capital moneys received by any local authority in respect of any transfer under this section shall be applied by such authority in manner provided by subsection (2) of section 7. of the Schedule to the Electric Lighting (Clauses) Act 1899.

71. Notwithstanding anything in this Act or in any Act or Acts incorporated therewith contained it shall be lawful for the Company out of any money by this Act authorised to be raised to pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him from the respective times of such payments until the expiration of four years from the commencement of this Act or such less period as the directors may determine but subject always to the conditions hereinafter stated (that is to say):—

Power to
pay interest
out of capital
during con-
struction.

- (A) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the Company that one fifth of the share capital authorised by this Act has been actually issued and accepted and is held by shareholders who or whose executors administrators or assignees are legally liable for the same:
- (B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear:

A.D. 1903.
—

- (c) The aggregate amount to be so paid for interest shall not exceed fifteen thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one third of the amount paid for interest as aforesaid :
- (D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares and in every certificate of shares :
- (E) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as hereinbefore set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this Act or any other Order or Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845.

Cesser of
powers in
case of works
not being
completed.

72. If within two years from the date of the passing of this Act the Company have not substantially commenced their works for the purpose of carrying out their powers under this Act and if within four years after the date of the passing of this Act the Company have not erected a generating station or generating stations sufficient in the opinion of the Board of Trade and are not in a position to supply therefrom the Board of Trade may on the application of a county or local authority and after hearing the parties order that the powers of the Company under this Act shall cease as to the whole or any portion of the area of supply and on any such order being made these powers shall cease accordingly.

Provision
as to general
Acts.

73. Nothing in this Act shall exempt the Company or their undertaking from the provisions of or deprive the Company of the benefits of any general Act relating to electricity or to the supply of or price to be charged for energy which may be passed after the commencement of this Act.

Costs of Act.

74. All costs charges expenses and liabilities of and preliminary to and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be borne and paid by the Company.

The **SCHEDULES** referred to in the foregoing Act. A.D. 1903.

THE FIRST SCHEDULE.

LANDS FOR GENERATING OR POWER STATIONS.

WESTFIELD SITE.—Situated in the parish of Torphichen and county of Linlithgow. It comprises the plots or parcels of land 12 acres or thereabouts in extent forming Nos. 469 and 1228 and part of No. 1229 on the 25-inch Ordnance Survey Sheets Nos. IV. 16 and V. 13 Linlithgowshire second edition 1897. It is bounded on the north-east by the Blackston branch of the North British Railway on the north-west by the River Avon on the west by plots Nos. 1221 and 1230 and part of Plot No. 1229 on the first before-mentioned Ordnance Survey Sheet on the south by the main road leading from Westfield to Strathloanhead and on the east by Plot No. 415 on the second before-mentioned Ordnance Survey Sheet.

BONNYBRIDGE SITE.—Situated in the parish of Falkirk and county of Stirling. It comprises the plot or parcel of land $15\frac{1}{2}$ acres or thereabouts in extent forming No. 1610 on the 25-inch Ordnance Survey Sheet No. XXX. 1 Stirlingshire second edition 1897. It is bounded on the north by the embankment of the Forth and Clyde Canal on the east by Plot No. 1607 on the last-mentioned Ordnance Survey Sheet on the south by the Caledonian Railway main line from Glasgow to Stirling and on the west by Plots Nos. 1614 and 1616 also by the private road No. 1615 on said last-mentioned Ordnance Survey Sheet.

ALVA SITE.—Situated in the parish of Alva and county of Clackmannan. It comprises Plot No. 255 and the private road forming part of Nos. 240 and 254 on the 25-inch Ordnance Survey Sheet No. CXXXIII. 11 Clackmannanshire second edition 1900 and is $15\frac{1}{2}$ acres or thereabouts in extent. It is bounded on the north by the Alva branch of the North British Railway on the east by Plot No. 254 on the last-mentioned Ordnance Survey Sheet on the south by the River Devon and on the west by Plot No. 233 on the said last-mentioned Ordnance Survey Sheet.

A.D. 1903.

THE SECOND SCHEDULE.

In this Schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Company charges any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter:—

- (A) For any quantity not exceeding the equivalent of four hundred hours of supply at the maximum power which has been demanded by him at the rate of three pence per unit;
- (B) For any further quantity exceeding the equivalent of four hundred hours of supply at such maximum power at the rate of two pence per unit:

And such prices shall include the cost of transforming the energy (if so required by the authority or person supplied) to such pressure and in the case of a supply in bulk to a local authority to such description of current as such authority or person respectively may reasonably require.

SECTION 2.

Where the Company charges any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this Schedule the amount of energy supplied to him being taken to be the product of such electrical quantity and the declared pressure of the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Company under any regulations made under this Act.

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